# Fort Bend County District Court

Cause No. 2024-CV-0015

Tanya Henson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

## Defendant's Original Answer

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|---|---|
| **Date:** | 5-31-24 |
| **Counsel for defendant:** | Richard Marshall, Ashford & Lyle LLP |

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and, pursuant to Rule 92 of the Texas Rules of Civil Procedure, demands strict proof thereof by a preponderance of the evidence.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the collision. Plaintiff failed to keep a proper lookout, failed to confirm that the adjacent lane was clear before moving, and failed to yield the right of way as required when cahnging lanes. Under Chapter 33 of the Texas Cviil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Plaintiff may be barred if that percentage exceeds fifty percent.

Second, the injuries and damages claimed were caused, in whole or in part, by a pre-existing condition, a subsequent event, or the acts or omissions of a person or entity other than Defendant, for which Defendant is not liable.

Third, Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and by failing to seek or continue treatment reasonably available to Plaintiff. Any recovery must be reduced accordingly.

Defendant reserves the right to amend this answer as discovery proceeds.